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Cisco Cisco Prime Network

Report of Evidence of Use

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Patent Number: US8964588B2

1. A method of performing Quality of Service (QoS) measurement in a universal mobile telecommunications system (UMTS), comprising: a user equipment providing a plurality of data links and setting a plurality of measurement targets among the plurality of data links; the user equipment selecting a specific period; the user equipment determining a first transmission parameter according to a QoS information element or a radio priority information element defined in a 3rd Generation Partnership Project (3GPP) specification; the user equipment acquiring a first value associated with the first transmission parameter of a first data link among the plurality of data links; the user equipment acquiring a second value associated with the first transmission parameter of a second data link among the plurality of data links; the user equipment including the first data link in a first measurement target among the plurality of measurement targets and including the second data link in a second measurement target among the plurality of measurement targets when a difference between the first value and the second value is larger than a predetermined value or including both the first data link and the second data link in the first measurement target when the difference between the first value and the second value is not larger than the predetermined value; and the user equipment acquiring an uplink scheduled Internet Protocol (IP) throughput and a downlink scheduled IP throughput of each measurement target by summing up data throughput of each measurement target during the specific period.

Element 1:

1. A method of performing Quality of Service (QoS) measurement in a universal mobile telecommunications system (UMTS), comprising:

Cisco Prime Network 4.3 User Guide, Chapter 27: Managing Mobile Networks, GPRS/UMTS Networks

https://www.cisco.com/c/en/us/td/docs/net_mgmt/prime/network/4-3/user/guide/CiscoPrimeNetwork43UserGuide/mobile.pdf

[Page 11] Traffic policing that governs the subscriber traffic flow if it violates or exceeds configured peak or committed data rates. **The traffic policing attributes represent a QoS data rate limit configuration for both uplink and downlink directions.**

[Page 12] QoS: IPv4 header ToS handling. Traffic rate limits for different 3GPP traffic classes. Mapping of R98 QoS attributes to work around particular handset defections. Dynamic QoS renegotiation (described elsewhere).

Patent application providing further evidence to support Cisco Prime Network product.

US20130114408A1 (Cisco) "System and method of modifying congestion control based on mobile system information"

https://patents.google.com/patent/US20130114408A1/en

Para [0044]; Another QoS parameter is UE Aggregate Maximum Bit Rate (UE-AMBR), which is associated with each UE. UE-AMBR measures aggregate maximum bit rate across all bearers associated with a UE. UE-AMBR is limited by a subscription parameter stored in the HSS 130. The mobility management entity (MME) 120 sets UE-AMBR to the sum of the APN-AMBR of all active APNs, up to the value of the subscribed UE-AMBR. UE-AMBR limits the aggregate bit rate that can be expected to be provided across all non-GBR bearers of a UE. This means that data traffic sent at a rate in excess of the UE-AMBR value may get discarded by a rate shaping function. Each non-GBR bearer could potentially utilize the entire UE-AMBR, e.g., when the other non-GBR bearers are not carrying any traffic. GBR bearers are outside the scope of UE-AMBR. The E-UTRAN enforces the UE-AMBR in uplink and downlink. The GBR and MBR denote bit rates of traffic per bearer, while UE-AMBR and APN-AMBR denote bit rates of traffic per group of bearers. Each of those QoS parameters has an uplink and a downlink component.

Element 2:

a user equipment providing a plurality of data links

Cisco Prime Network 4.3 User Guide, Chapter 27: Managing Mobile Networks, GPRS/UMTS Networks

https://www.cisco.com/c/en/us/td/docs/net_mgmt/prime/network/4-3/user/guide/CiscoPrimeNetwork43UserGuide/mobile.pdf

[Page 103] GRE Parameters—Generic Routing Encapsulation (GRE) is a tunneling protocol developed by Cisco Systems that can encapsulate a wide variety of network layer protocols inside virtual point-to-point links over an Internet Protocol internetwork. See Viewing the GRE Parameters, page 27-105.

Patent application providing further evidence to support Cisco Prime Network product.

US20130114408A1 (Cisco) "System and method of modifying congestion control based on mobile system information"

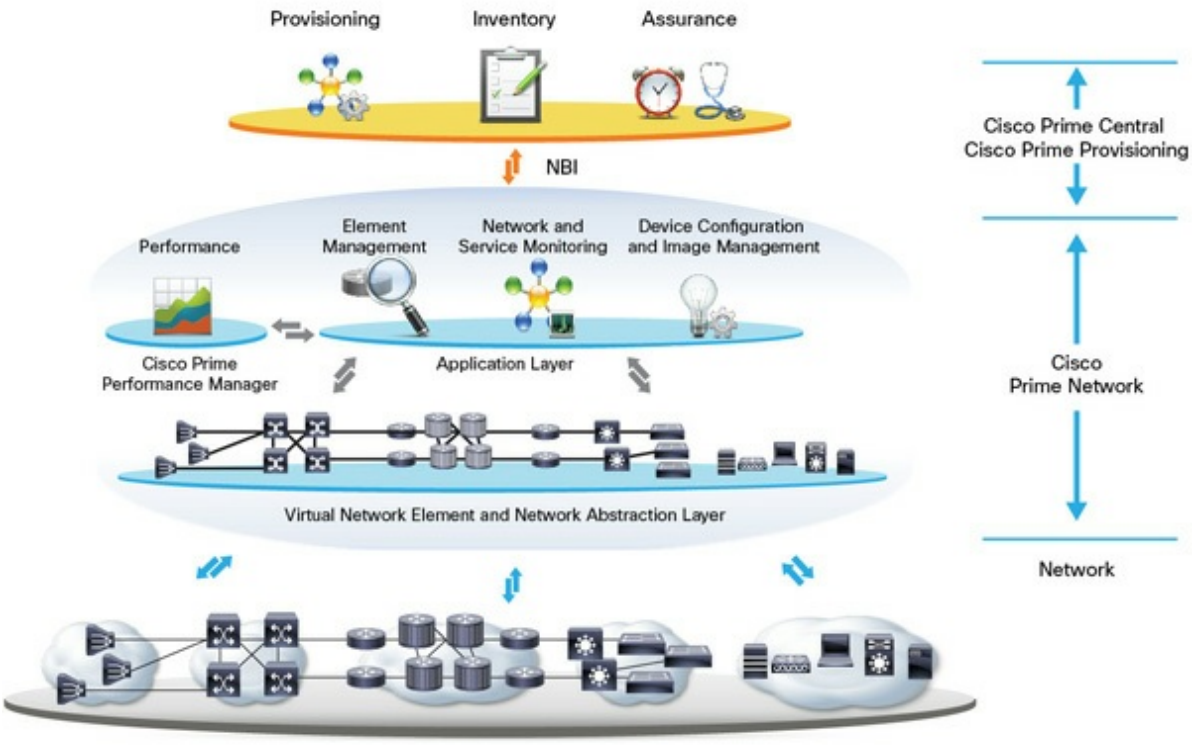
https://patents.google.com/patent/US20130114408A1/en

Para [0093]; In some embodiments the network device is implemented using a collection of integrated circuit boards or cards. These cards include input/output interfaces for communication amongst each other, at least one processor for executing instructions and running modules that are stored in memory, and memory for storing data. The features of a network device that implements a gateway, in accordance with some embodiments, are further described below. FIG. 9 illustrates a network device 900 in accordance with some embodiments. FIG. 10 illustrates the implementation of a network device in accordance with some embodiments. The network device 900 includes slots 1002 for loading application cards and line cards. A midplane can be used in the network device to provide intra-network device communications, power connections, and transport paths between the various installed cards. The midplane can include buses such as a switch fabric 1004, a control bus 1006, a system management bus, a redundancy bus 1008, and a time division multiplex (TDM) bus. T**he switch fabric 1004 is an IP-based transport path for user data throughout the network device implemented by establishing inter-card communications between application cards and line cards.** The control bus 1006 interconnects the control and management processors within the network device. The network device management bus provides management of system functions such as supplying power, monitoring temperatures, board status, data path errors, card resets, and other failover features. **The redundancy bus 1008 provides transportation of user data and redundancy links in the event of hardware failures**. The TDM bus provides support for voice services on the system.

Element 3:

and setting a plurality of measurement targets among the plurality of data links;

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Para [0044]; Another QoS parameter is **UE Aggregate Maximum Bit Rate (UE-AMBR**), which is associated with each UE. UE-AMBR measures aggregate maximum bit rate across all bearers associated with a UE. UE-AMBR is limited by a subscription parameter stored in the HSS 130. The mobility management entity (MME) 120 sets UE-AMBR to the sum of the APN-AMBR of all active APNs, up to the value of the subscribed UE-AMBR. UE-AMBR limits the aggregate bit rate that can be expected to be provided across all non-GBR bearers of a UE. This means that data traffic sent at a rate in excess of the UE-AMBR value may get discarded by a rate shaping function. Each non-GBR bearer could potentially utilize the entire UE-AMBR, e.g., when the other non-GBR bearers are not carrying any traffic. GBR bearers are outside the scope of UE-AMBR. **The E-UTRAN enforces the UE-AMBR in uplink and downlink**. The GBR and MBR denote bit rates of traffic per bearer, while UE-AMBR and APN-AMBR denote bit rates of traffic per group of bearers. Each of those QoS parameters has an uplink and a downlink component.

Element 4:

the user equipment selecting a specific period;

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Para [0048]; As shown in the above table, two other QoS parameters are Packet Delay Budget (PDB) and Packet Error Loss Rate (PELR), which are measures of the QoS Class Identifier (QCI). **PDB defines an upper bound for the time that a packet may be delayed between the UE and the PCEF**. The purpose of PDB is to support configuration of scheduling and link layer functions (e.g., setting of scheduling priority weights and hybrid automatic repeat request (HARQ) target operating points). The PDB is interpreted as a maximum delay with a confidence level of 98%. For certain QCI, the value of PDB is the same in uplink and downlink. PELR defines an upper bound for a rate of non-congestion-related packet losses. Specifically, PELR defines an upper bound for the rate of SDUs (service data units) (e.g., IP (Internet Protocol) packets) that have been processed by the sender of a link layer protocol (e.g., RLC (Radio Link Control) protocol in the E-UTRAN 110) but that are not successfully delivered by the corresponding receiver to the upper layer (e.g., PDCP (Packet Data Convergence Protocol) in the E-UTRAN 110). The purpose of PELR is to allow for appropriate link layer protocol configurations (e.g., RLC and HARQ in the E-UTRAN 110). For a given QCI, the value of PELR may be the same in uplink and downlink.

Element 5:

the user equipment determining a first transmission parameter according to a QoS information element

US20130114408A1 (Cisco) "System and method of modifying congestion control based on mobile system information"

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Claim 1: A method comprising:

receiving, on a network connection of a gateway, data from a server that is directed to a mobile device over a mobile network, wherein the data is received in accordance with a transmission control protocol (TCP) that has one or more TCP congestion control parameters that manage congestion control behavior between the server and the mobi... device;

receiving, at a session manager of the gateway, one or more quality of service (QoS) mobile system parameters related to the quality of service of the mobile network provided to the mobile device; and

managing the transmission of the data between the server and the mobile device by modifying the one or more TCP congestion control parameters based on the received one or more QoS mobile system parameters.

Element 6:

or a radio priority information element defined in a 3rd Generation Partnership Project (3GPP) specification;

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Para [0024]; The PGW acts as the interface between the LTE network and other packet data networks, such as the Internet or Session-Initiation-Protocol-based (SIP-based) IMS networks (fixed and mobile). **The PGW serves as the anchor point for intra-3GPP network mobility, as well as mobility between 3GPP and non-3GPP networks. The PGW acts as the Policy and Charging Enforcement Function (PCEF),** which manages Quality of Service (QoS), online/offline flow-based charging data generation, deep-packet inspection, and lawful intercept. The PGW provides connectivity to the UE to external packet data networks by being the point of exit and entry of traffic for the UE. A UE may have simultaneous connectivity with more than one PGW for accessing multiple packet data networks. The PGW performs policy enforcement, packet filtering for each user, charging support, lawful interception, and packet screening. The PGW also provides an anchor for mobility between 3GPP and non-3GPP technologies such as WiMAX and 3GPP2 standards (CDMA 1x and EVDO).

Element 7:

the user equipment acquiring a first value associated with the first transmission parameter of a first data link among the plurality of data links;

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Para [0067]; FIG. 7 further illustrates the session manager 508 in accordance with certain embodiments. The TCP proxies are implemented in the session manager 508 in PGW/GGSN 214. **The session manager 508 splits a TCP connection between a TCP server 406 and an MS 300 into two TCP connections 600, 60**6. **The first TCP connection 600** is **between the client TCP proxy 602** as a sender and the MS 300 as a receiver. **The client TCP proxy 602 modifies congestion control parameters for the first TCP connection 600 using the TCP client-side stack and mobile system information as described below**. The second TCP connection 606 is between the TCP server 406 as a sender and the TCP proxy 604 as a receiver. The server TCP proxy 604 uses the second TCP connection 606 without optimization, according to the TCP standards.

Element 8:

the user equipment acquiring a second value associated with the first transmission parameter of a second data link among the plurality of data links;

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https://patents.google.com/patent/US20130114408A1/en

Para [0067]; FIG. 7 further illustrates the session manager 508 in accordance with certain embodiments. The TCP proxies are implemented in the session manager 508 in PGW/GGSN 214. The session manager 508 splits a TCP connection between a TCP server 406 and an MS 300 into two TCP connections 600, 606. The first TCP connection 600 is between the client TCP proxy 602 as a sender and the MS 300 as a receiver. The client TCP proxy 602 modifies congestion control parameters for the first TCP connection 600 using the TCP client-side stack and mobile system information as described below. The second TCP connection 606 is between the TCP server 406 as a sender and the TCP proxy 604 as a receiver. The server TCP proxy 604 uses the second TCP connection 606without optimization, accordin.. to the TCP standards.

Element 9:

the user equipment including the first data link in a first measurement target among the plurality of measurement targets

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Para [0053]; Another QoS parameter is authorized Aggregate Maximum Bit Rate per Access Point Name (authorized APN-AMBR). **In some embodiments, the mobile wireless network enforces policy for an authorized QoS per Access Point Name (APN). Specifically, the PCEF enforces the APN-AMBR.** The PCEF may receive an authorized QoS per APN at Internet Protocol Connectivity Access Network (IP-CAN) session establishment and also at IP-CAN session modification. Authorized APN-AMBR sets an upper limit for the bandwidth usage for all non-GBR bearers for that APN. The PCEF generally limits to that value the aggregated traffic of all SDFs of the same APN that are associated with non-GBR QCIs. Upon every interaction with the PDN GW 214 (shown in FIGS. 2, 3), the PCRF 308 (shown in FIG. 3) may provide the Authorized APN-AMBR. In such a case, the Authorized APN-AMBR overrides any possible APN-AMBR stored in the PCEF. **In the case of aggregation of multiple service data flows, the combination of the authorized QoS information of the individual service data flows is provided as the authorized QoS for this aggregate.**

Para [0067]; FIG. 7 further illustrates the session manager 508 in accordance with certain embodiments. The TCP proxies are implemented in the session manager 508 in PGW/GGSN 214. **The session manager 508 splits a TCP connection between a TCP server 406 and an MS 300 into two TCP connections 600, 606.** The f**irst TCP connection 600 is between the client TCP proxy 602** as a sender and the MS 300 as a receiver. **The client TCP proxy 602 modifies congestion control parameters for the first TCP connection 600** using the TCP client-side stack and mobile system information as described below. **The second TCP connection 606 is between the TCP server 406** as a sender and the TCP proxy 604 as a receiver. **The server TCP proxy 604 uses the second TCP connection 606 without optimization, according to the TCP standards**.

Element 10:

and including the second data link in a second measurement target among the plurality of measurement targets when a difference between the first value and the second value is larger than a predetermined value

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Para [0048]; As shown in the above table, two other QoS parameters are Packet Delay Budget (PDB) and Packet Error Loss Rate (PELR), which are measures of the QoS Class Identifier (QCI). PDB defines an **upper bound for the time that a packet may be delayed between the UE and the PCEF.** The purpose of PDB is to support configuration of scheduling and link layer functions (e.g., setting of scheduling priority weights and hybrid automatic repeat request (HARQ) target operating points). The PDB is interpreted as a maximum delay with a confidence level of 98%. **For certain QCI, the value of PDB is the same in uplink and downlink**. **PELR defines an upper bound for a rate of non-congestion-related packet losses.Specifically, PELR defines an upper bound for the rate of SDUs (service data units) (e.g., IP (Internet Protocol) packets) that have been processed by the sender of a link**

layer protocol (e.g., RLC (Radio Link Control) protocol in the E-UTRAN 110) but that are not successfully delivered by the corresponding receiver to the upper layer (e.g., PDCP (Packet Data Convergence Protocol) in the E-UTRAN 110). The purpose of PELR is to allow for appropriate link layer protocol configurations (e.g., RLC and HARQ in the E-UTRAN 110). For a given QCI, the value of PELR may be the same in uplink and downlink.

Para [0067]; FIG. 7 further illustrates the session manager 508 in accordance with certain embodiments. The TCP proxies are implemented in the session manager 508 in PGW/GGSN 214. **The session manager 508 splits a TCP connection between a TCP server 406 and an MS 300 into two TCP connections 600, 606.** The f**irst TCP connection 600 is between the client TCP proxy 602** as a sender and the MS 300 as a receiver. **The client TCP proxy 602 modifies congestion control parameters for the first TCP connection 600** using the TCP client-side stack and mobile system information as described below. **The second TCP connection 606 is between the TCP server 406** as a sender and the TCP proxy 604 as a receiver. **The server TCP proxy 604 uses the second TCP connection 606 without optimization, according to the TCP standards**.

Element 11:

or including both the first data link and the second data link in the first measurement target when the difference between the first value and the second value is not larger than the predetermined value;

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Element 12:

and the user equipment acquiring an uplink scheduled Internet Protocol (IP) throughput

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Element 13:

and a downlink scheduled IP throughput

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Element 14:

of each measurement target

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Element 15:

by summing up data throughput of each measurement target during the specific period.

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APNs, up to the value of the subscribed UE-AMBR. UE-AMBR limits the aggregate bit rate that can be expected to be provided across all non-GBR bearers of a UE. This means that data traffic sent at a rate in excess of the UE-AMBR value may get discarded by a rate shaping function. Each non-GBR bearer could potentially utilize the entire UE-AMBR, e.g., when the other non-GBR bearers are not carrying any traffic. GBR bearers are outside the scope of UE-AMBR. The E-UTRAN enforces the UE-AMBR in uplink and downlink. The GBR and MBR denote bit rates of traffic per bearer, while UE-AMBR and APN-AMBR denote bit rates of traffic per group of bearers. Each of those QoS parameters has an uplink and a downlink component.

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End of Report

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Our hourly rate is: $

Non-Disclosure Agreement:

We understand that for the purpose of assisting you in collecting data, you may disclose to us certain confidential information that you want to keep confidential; therefore, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, we agree as follows:

1. For a period of twelve (36) months from the date we receive your confidential information ("Effective Date"), we will not use or disclose the information, except: (a) in the event that such information (i) comes into the public domain not through us; (ii) is already known to us at the time of disclosure; (iii) is lawfully otherwise learnt or independently developed by us; or (iv) is required to be disclosed by law.

2. Since a breach of our obligations hereunder may result in irreparable harm to you, we agree that upon such breach or threat thereof, you shall be entitled to specific performance and other injunctive relief without posting a bond, and in the event of disclosures required by court order, we shall promptly notify you of the proceeding.

3. This agreement supersedes all prior discussions and writings and constitutes the entire agreement between you and us with respect to the subject matter hereof. This Agreement shall be binding upon the successors and assigns of the respective parties, and may not be modified except by an instrument executed by both parties.

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